

AOC-JV-30 Doc. Code: PEX
Rev. 6-23
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Commonwealth of Kentucky
Court of Justice www.kycourts.gov



**PETITION TO VACATE AND
EXPUNGE JUVENILE RECORD**

Case No. _____

Court [] District [] Family

County _____

Division _____

KRS 610.330; JCRPP 19

signature/date review zone

IN THE INTEREST OF: _____, A CHILD

DOB	Sex	Race	SSN

The Petitioner, _____, located at _____
Name (and Agency if applicable) Address

_____, moves this Court, pursuant to KRS 610.330, to vacate the adjudication of the below-named offenses and expunge the records of a person previously before this Court (hereinafter referred to as "the child") who has been adjudicated under KRS Chapters 630 (Status Offenses), 635 (Public Offenses which would be felonies, misdemeanors, or violations if committed by an adult), or 645 (Mental Health), but not under KRS Chapters 620 or 640, who resides at _____

Child's Address

_____. The Petitioner requests that the record of the following offense(s) in the above-referenced case be expunged:

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

OFFENSE: _____

In support of this Petition, the Petitioner states to the best of his or her knowledge or belief as follows:

1. There are no proceedings pending or being instituted against the above-referenced child;
2. The above-stated offense(s) is/are not a sex crime, as defined in KRS 17.500; and
3. The above-stated offense(s) would not classify a person as a violent offender under KRS 439.3401.
4. Please check only one:

☐ This Court's jurisdiction over the child ended on _____, 2_____, which is at least two years prior to the filing of this Petition, and the child was not committed to the Department of Juvenile Justice, the Cabinet for Health and Family Services, or to a public or private agency; or

☐ The child was unconditionally released from commitment to the Department of Juvenile Justice or the Cabinet for Health and Family Services or a public or private agency on _____, 2_____, which is at least two years prior to the filing of this Petition; or

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☐ The Court's waiver of the two year period is requested due to the extraordinary circumstances of:

_____.

The Petitioner requests this Court to set a date for a hearing in this matter, and to so notify the County Attorney and anyone else whom the Court or the child, parents, guardian, or custodian has reason to believe may have relevant information related to the expungement of the record. List the names and addresses of such persons:

participant/case info review zone

WHEREFORE, the Petitioner requests this Court, pursuant to KRS 610.330, to vacate the adjudication in the above-referenced case and to order expunged all records in the child's case in the custody of the Court and any such records, including law enforcement records, in the custody of any other agency or official.

_____, 2_____
Date

Signature of Petitioner

Address and Telephone of Petitioner

NOTIFICATION OF EXPUNGEMENT HEARING

This case is set for a hearing on _____, 2_____, at the hour of _____ ☐ a.m. ☐ p.m. at the _____ ☐ District ☐ Family Court. Dated this _____ day of _____, 2_____.

The County Attorney may respond to this Petition and will have an opportunity at the hearing to establish that the child or offense is ineligible for expungement under KRS 610.330.

Clerk

By: _____ D.C.

FOR CLERK USE ONLY

This Petition for Expungement was sent on the _____ day of _____, 2_____, to Petitioner or his/her attorney; the child or his/her attorney if different from Petitioner; the County Attorney; and anyone else who the Court or the child, his or her parents, relatives, guardians, or custodians has reason to believe may have relevant information related to the expungement of the record.

signature/date review zone

Clerk

By: _____ D.C.